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Trafficking in Persons Policy

Effective Jan. 1, 2023

Enacted

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1. Purpose and Scope

This policy applies to all Partners of the Americas (Partners) Affiliates, as defined below under [4. Definitions](#). This policy provides an analytical framework to ensure that Partners programs comply with the Victims of Trafficking and Violence Protection Act of 2000, as amended (TVPA). TVPA provides tools to combat trafficking in persons (TIP) both worldwide and domestically. Partners maintains a zero-tolerance policy against TIP. Partners will apply this policy to ensure risks associated with TIP are minimized in all operations both in the U.S. and abroad. This policy is meant to provide a general guidance and to comply with U.S. Government regulations, donor requirements, and all other applicable local laws. This policy sets forth the expectations Partners as an organization has to ensure Partners Affiliates avoid engagement of, complicity in, or benefiting from human trafficking.

This procedure implements FAR 52.222-50 and mandatory provision of M15 Standard Provisions for U.S. Nongovernmental Organizations, which require implementers of U.S. Government contracts and cooperative agreements to administer policies and procedures to prevent human trafficking.

2. Compliance and Responsibility

This policy also applies to all Partners Affiliates, defined as:

- All staff (full-time, part-time, international, and national), and those engaged on short-term contracts (e.g., consultants, facilitators, mentors, sub-contractors, researchers, etc.);
- Volunteers, board members, trustees; and
- Partner organizations who have a formal/contractual relationship with Partners .

Project Managers at home office and the field office Chief of Party (COP)/Project Director (PD) are responsible for ensuring customization, implementation, and monitoring of the Trafficking in Persons (TIP) compliance plan. The COP/PD is also responsible for certifying the TIP compliance plan on an annual basis on the contract/agreement anniversary date.

2.1 Order of Precedence

If any conflicts occur between this policy and donor requirement, the issue shall be resolved by giving precedence in the following order:

1. Requirements according to the donor (if the Partners Affiliate works on a U.S. Government-funded project)
2. Partners 's TIP Policy

3. Definitions

For the purposes of this policy, Partners uses the TVPA and U.S. Department of State Office to Monitor and Combat Trafficking in Persons in defining the following terms:

- 1) **Partners Affiliate:** Any employee, non-employee, members of the Board of Directors, individuals of a partner organization with a contractual relationship to Partners, or members of the Partners network, including but not limited to consultants, volunteers, and Chapter members, implementing programs on behalf of Partners HQ.
- 2) **Bonded Labor or Debt Bondage:** The status or condition of a debtor arising from a pledge by the debtor of his or her personal services or of those of a person under his or her control as a security for debt if the value of those services as reasonably assessed is not applied toward the liquidation of the debt or the length and nature of those services are not respectively limited and defined.
- 3) **Child or “Children:** A child or children are defined as persons who have not attained 18 years of age, irrespective of local country definitions of when a child reaches adulthood.
- 4) **Child Sex Trafficking:** Any child (under the age of 18) who has been recruited, enticed, harbored, transported, provided, obtained, advertised, maintained, patronized, or solicited to engage in a commercial sex act is a victim of human trafficking regardless of whether or not force, fraud, or coercion is used. The use of children in the commercial sex trade is prohibited both under U.S. law and by legislation in most countries around the world.
- 5) **Complainant:** The person reporting (or “making a complaint” about) TIP. This could be the victim or another person who becomes aware of the wrongdoing.
- 6) **Complaint:** The report of an incident of TIP.
- 7) **Complaint’s procedure:** A framework that describes the course of action for receiving and processing allegations of TIP. This includes systems for processing complaints within an organization.
- 8) **Domestic Servitude:** A form of forced labor in which the trafficker requires a victim to perform work in a private residence. Domestic workplaces are often informal, connected to off duty living quarters, and not shared with other workers. Such an environment is conducive to exploitation because authorities cannot inspect private homes as easily as formal workplaces. The use of informal, or even verbal, employment contracts compounds vulnerability. Foreign

domestic workers are particularly vulnerable to abuse due to factors such as language and cultural barriers and lack of community ties.

- 9) Exploitation:** includes, at a minimum, the exploitation of the prostitution of others or other forms of sexual exploitation, forced labor or services, slavery, or practices similar to slavery, servitude, or the removal of organs. The recruitment, transportation, transfer, harboring, or receipt of someone under the age of 18 for the purpose of exploitation is considered “trafficking in persons”.
- 10) Forced Child Labor:** Although children may legally engage in certain forms of work, forms of slavery or slave-like practices – including the sale of children for exploitation, forced or compulsory child labor, and debt bondage and serfdom of children – continue to exist, despite legal prohibitions and widespread condemnation.
- 11) Forced Labor:** Means knowingly providing or obtaining the labor or services of a person:
- a) By threats of serious harm to, or physical restraint against, that person or another person;
 - b) By means of any scheme, plan, or pattern intended to cause the person to believe that, if the person did not perform such labor or services, that person or another person would suffer serious harm or physical restraint; or
 - c) By means of the abuse or threatened abuse of law or the legal process.
- 12) Human trafficking:** Refers to recruiting, harboring, transporting, providing, or obtaining a person for compelled labor or commercial sex acts through the use of force, fraud, or coercion. Human trafficking can include, but does not require, movement. People may be considered trafficking victims regardless of whether they were born into a state of servitude, were transported to the exploitative situation, previously consented to work for a trafficker, or participated in a crime as a direct result of being trafficked. At the heart of this phenomenon is the traffickers’ goal of exploiting and enslaving their victims and the coercive and deceptive practices they use.
- 13) Incident:** Instances of TIP.
- 14) Partner Organizations:** Any organization that has a contractual relationship with Partners, including subcontractors and sub-awardees.
- 15) Severe forms of trafficking in persons:**



- a) Sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or
- b) The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.”

16) Sex Trafficking: When a person is required to engage in a commercial sex act as the result of force, threats of force, fraud, coercion, or any combination of such means, that person is a victim of human trafficking. This is true even if the victim previously consented to engage in commercial sex.

17) Trafficking in persons: Means the recruitment, transportation (including failure to provide return transportation), transfer, harboring, or receipt of persons, by means of the threat or use of force or other forms of coercion, of abduction, of fraud, of deception, of the abuse of power or of a position of vulnerability or of the giving or receiving of payments or benefits to achieve the consent of a person having control over another person, for the purpose of exploitation.

18) Victim: The person who is the subject of human trafficking. The term Victim is not meant to imply a lack of strength, resilience, or capacity to survive.

4. Policy

It is the policy of Partners to comply with laws and regulations prohibiting trafficking in persons. Partners staff and Partners Affiliates must avoid and are prohibited from active engagement, complicity in or benefiting from any practice that constitutes trafficking in persons. The consent of a victim of trafficking is irrelevant.

Examples of conduct that would violate this policy because it contributes to trafficking in persons, include (but are not limited to):

- Procuring commercial sex acts;
- Using forced labor in the performance of any contract, cooperative agreement, or award;
- Destroying, concealing, confiscating, or otherwise denying any employee access to his or her identity or immigration documents, such as passports or drivers licenses;
- Using misleading or fraudulent recruiting practices during the recruitment of employees or offering of employment/contract positions; such as failing to disclose, in a format and language accessible to the potential candidate, basic information or making material misrepresentations during the recruitment of candidates regarding the key terms and conditions, including wages and fringe benefits, the location of work, the living conditions,



housing and associated costs (if provided by Partners), any significant cost to be charged to the candidate, and, if applicable, the hazardous nature of the work;

- Using recruiters that do not comply with local labor laws of the country in which the recruiting takes place;
- Charging applicants/candidates/employees recruitment fees;
- If required by law or contract, failing to provide return transportation, or failing to pay for the cost of return transportation upon the end of employment;
- If required by law or contract, failing to provide or arrange housing that meets the host country housing and safety standards; or
- If required by law or contract, failing to provide an employment contract, recruitment agreement, or other required work document in writing.

Partners Affiliates who violate this policy will be subject to discipline, up to termination, and may be subject to criminal prosecution. Partner Organization may have their agreements terminated, be prohibited from working with Partners in the future and/or be subject to criminal prosecution.

5. Counter-Trafficking in Persons Minimum Compliance Requirements

Counter-TIP Minimum Compliance Requirements apply to all projects, regardless of the TIP risk categorization for the country or the relevant project. Project Managers at home office and the field office COP/PD are responsible for monitoring programs to verify compliance with the TIP Policy and the Minimum Compliance Requirements.

5.1 Customize the TIP Compliance Plan

Project Managers at home office and the field office COP/PD are responsible for ensuring customization, implementation, and monitoring of the [Trafficking in Persons Compliance Plan](#).

The COP/PD is responsible for customizing the TIP compliance plan within three months of the project start date. Collect information regarding the trafficking-in-person's risk level for the project. The COP/PD should use the following resources:

- Read the latest [State Department TIP Report](#).
 - In the State Department TIP Report, each country is categorized as Tier 1 (low risk), Tier 2 (high risk), or Tier 3 (extremely high risk). The TIP tiers measure the severity of human trafficking in that country and how well its government complies with the Trafficking Victim's Prevention Act. If the project operates in a Tier 2 or Tier 3 country, it is operating in a country with individuals who are at high risk for human trafficking and a government that is not adequately enforcing anti-trafficking laws.



- Identify the State Department TIP tier ranking for the country of operation (Low, Medium, or High).
 - Note, if the project is identified as a Tier 1 (low risk) country by the State Department TIP report but interacts with a high-risk sector, region, or population the risk level must be adjusted accordingly.
 - If the risk level for the project is Medium or High, include more robust awareness activities and detailed information on the risks in the project's environment.
 - If the risk level for the project is High, consult with the home office program manager regarding the need to engage a TIP expert to assist with customization of the compliance plan.
- Identify which economic sector(s), geographic region(s), or ethnic population(s) are at greatest risk, and which types of human trafficking are most prevalent and determine the extent to which the project will work with these sectors, regions, or populations.
- As needed, collect information on trafficking in persons from other credible sources, Partners within the country or using notes gathered during reconnaissance assignments in the country.

Once the plan has been approved by the COP/PD, the plan must be submitted to home office Program Manager.

The COP/PD is responsible for certifying the TIP compliance plan on an annual basis, thereafter, on the contract/agreement anniversary date. Certify the compliance plan using the certification form on the final page of the TIP compliance plan. This certification acknowledges through due diligence efforts that:

- To the best of his/her knowledge and or belief, the project's employees, and agents, as well as its Partner Organizations, subcontractors, sub-awardees and their employees and agents are not engaged in prohibited activities; and
- If prohibited abuses are found, Partners and/or its subcontractor and sub-awardees will take the appropriate remedial and referral actions.

The annual certification must be sent to home office and a copy sent to the Compliance Department at compliance@Partners.net. Annual certifications must be submitted within three months of a new award, and annually thereafter by January 31st.

5.2 Awareness

To reduce the risk of TIP, Partners has established the following practices, which apply to all Partners Affiliates.

For Individuals:



- Fully read and review the TIP Policy; and
- Sign Partners 's Code of Conduct which includes TIP language

For Partner Organizations:

- Sign TIP Certification;
- Have in place and follow organizational policy and procedure on TIP; and
- For Partner Organizations with agreements over \$550,000 USD, a copy of their Compliance Plan must be collected annually.

During site visits or visits to vendors, project staff should be cognizant of human trafficking warning signs, and report potential violations as per the "Reporting" section of the Compliance Plan for that Partner Organization.

Partners 's home office Program Managers are responsible for verifying that Partners Affiliates under their program(s) complete the above requirements. Partners 's HR Department is responsible for verifying that Partners HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

5.3 Education and Training

Partners understands the importance of providing adequate training and awareness to staff and Partners Affiliates to ensure a clear understanding and effective enforcement of the policy. Therefore, Partners commits to:

1. Disseminating and promoting the policy to all Partners Affiliates. Partners will make the policy available and accessible both in print and electronic formats.
2. Translating and creating versions of the policy in the primary languages (English, Spanish, Portuguese, French, Burmese, and other language as appropriate).
3. Providing regular briefings and annual trainings on the policy and incorporating trainings as part of its onboarding process for new hires. The trainings are listed below:
 - a. FAI.gov: https://www.fai.gov/sites/fai/files/FAC_022-Combating_Trafficking_in_Persons/story.html or
 - b. Polaris Project: https://polarisproject.org/human-trafficking-101/#gf_4
4. All Partners agreements with Partner Organizations will include a clause that requires the Partner Organization to adhere to the substance of this policy and to communicate this policy to their staff.
5. Members of Senior Leadership are required to report all suspected violations of this policy to the Human Resource (HR) Team.

Partners will ensure Partners Affiliates have access to materials and resources on the [External SharePoint](#) that support understanding and implementation of this policy. Partners will also encourage and facilitate the sharing of best practices in implementing the TIP Policy.

6. Reporting Procedures

Partners is committed to protecting anyone affected by TIP and anyone who submits a report on behalf of a person affected by TIP. Therefore, the following procedures were developed to maintain a safe and confidential experience during the reporting process.

6.1 Filing a Report

For Individuals:

- All reports of potential TIP violations will be taken seriously. If Partners Affiliates observe any inappropriate behavior or behavior that may violate any provision of this policy, they must immediately report their observations in one of the following ways:
 1. Contact Partners 's external and confidential hotline, Foster Thomas, at +1(443)-951-4951. *Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.*
 2. Contact Partners 's internal HR department at POAHR@Partners.net.
 3. Hotline phone number of the Global Human Trafficking Hotline at 1-844-888-FREE and its email address at help@befree.org.
- If the reporter does not receive a response from one of the above personnel within three business days, they should immediately submit a report via another method listed above.

For Partner Organizations:

- In accordance with Section [6.5 Complaints about Partner Organizations](#), Partner Organizations with a contractual relationship to Partners upon receiving a TIP violation report, should follow their organization policy. Notification of the alleged TIP violation should be sent to Partners 's point of contact within three (3) business days.

Malicious reporting of TIP with the intention of harming another person's integrity or reputation amounts to misconduct and is subject to disciplinary action. This is distinct from reports made in good faith based on the judgment and information available at the time of the report, which may not be confirmed by an investigation.

6.2 Response to a Report

Once Partners and/or Foster Thomas receives an alleged TIP report, Partners will open a formal investigation. The 3rd party firm will lead the investigation effort in coordination with Partners . If

Partners and/or the 3rd party firm believe that there are any serious or imminent threats to the safety of the report's subject, appropriate action will be taken immediately to ensure the individuals safety. In the absence of a 3rd party firm, Partners will designate a minimum of two members of the Board of Directors to serve in the Partners Compliance Committee who will be available to investigate good faith disclosures or reports of any wrongdoing, including anonymously or confidentially.

The Partners Compliance Committee will lead an investigation, with outside advisory consultation provided as needed. Based on the consultation and investigation, the Partners Compliance Committee will render a decision on how to respond and what actions, to take.

6.3 Confidentially

Partners understands due to the nature of incidents related to TIP; action must be taken immediately. TIP investigations will be conducted in a timely, fair, objective, and confidential manner. This includes the use of appropriate interviewing practice with reports and witnesses. All information and documented evidence will be held securely and in the strictest confidence. The name of the complainant will not be revealed to the person(s) potentially implicated in the allegation or to any other person unless the individual personally authorizes the disclosure of their identity.

Every effort will be made to maintain confidentiality throughout the complaints process. Information that identifies individuals involved in a complaint will be limited to essential personnel and will not be shared further without obtaining the informed consent of those involved, except if someone's life is at risk, a child is at risk, or as required by law in consultation with legal counsel and where safe to do so. Non-identifying information will be shared with authorized people which will include the 3rd party investigation firm, Partners's HR manager, Foster Thomas, and local law enforcement if necessary.

All TIP-related information must be kept confidential, identities must be protected to the extent possible, and personal information should be collected and shared only to a limited number of authorized people for the purpose of investigating.

Staff involved in the complaints process will be made aware of the importance of maintaining confidentiality and will be asked to sign a confidentiality agreement. Employees who breach confidentiality may be subject to disciplinary action up to and including termination of employment, and others who work with Partners may have their relationship with Partners terminated. In some cases, such breaches may constitute breaking the law.



6.4 Retaliation against Complainants, Witnesses, or Victims

Partners prohibits any retaliation against anyone who legitimately exercises their rights under this policy or who participates/cooperates in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any person for making a valid and truthful complaint or report of a violation. Anyone who believes they are being discriminated against because of legitimately filing a complaint or truthfully participating in an investigation should immediately file a report in one of the following ways:

1. Contact the immediate supervisor, program, or country director of the alleged offender.
2. Contact Partners 's external and confidential hotline, Foster Thomas, at +1 (443)-951-4951. Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.
3. Contact Partners 's internal HR department at POAHR@Partners.net.

Anyone who becomes aware of possible harassment or retaliation must immediately file a report so that the organization can investigate in a timely and confidential manner. Partners will take action against anyone, whether they are the subject of a complaint or not, who seeks or conducts retaliatory action against complainants, witnesses, or victims. Employees may be subject to disciplinary action, up to and including termination of employment. Others who work with Partners may have their relationship with Partners terminated.

6.5 Complaints about Partner Organizations

As mentioned in [6.1 Filing a Report](#), Partner Organizations should notify Partners 's point of contact of any alleged TIP violation within three (3) business days. Where Partners receives a complaint about a Partner Organization, Partners will expect the partner to respond safely, quickly, and appropriately. Partners will assist the partner to ascertain its reporting obligations.

Where appropriate, Partners will collaborate with the partner to address the issue through an appropriate independent investigation. If the outcome is that a violation has occurred, ongoing work with the partner cannot involve the individual(s) concerned. If there is reason to believe that an allegation of abuse has been dealt with inappropriately by a partner, then they risk withdrawal of funding or ending of the relationship.

7. Policy Administration

Responsibility for ensuring this policy is monitored, enforced, and remains up-to-date and compliant rests with the Compliance Team. Partners 's Executive Management Leadership is committed to taking all appropriate corrective actions. Disciplinary, legal, or other applicable actions in response to any violation of the TIP Policy will be taken against any individual who has committed a TIP violation and/or anyone who knew of such a violation and failed to act or report.

The Compliance Team will continuously identify and address gaps and/or weaknesses in applicable policies, procedures, and protocols.